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Afzal Must Not Hang

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Our higher judiciary has come to play an ultra- conservative role that increasingly resembles its status in the 1950s and 1960s as a defender of privilege. Then, the Supreme Court and most high courts acted as bulwarks of opposition to egalitarianism and ruled against progressive measures, including land reforms abolition of privy purses and bank nationalization. They saw themselves as guardians of private property and interpreted freedoms and rights in largely individualistic terms.

It took a systemic upheaval—including changes in judicial appointment procedures, major shifts in the political balance of forces and the public mood, and a change of guard in the ruling party—before the higher judiciary stopped obstructing laws that promoted popular interest. Then followed a brief spring of judicial creativity with a liberal reinterpretation of fundamental rights and a flowering of public interest litigations.

Over the past decade or more, the process has been reversed. The courts have handed down conservative judgements on numerous issues—from environmental protection to slum-dwellers' rights, from education to secularism, and from entrepreneurs' privileges to Bhopal. Recent verdicts show a consistent conservative inclination, whether on the Narmada dam issue (which failed to uphold the imperative of rehabilitation), labour rights (subordinated to employers' profit), social policy (reservations, tribal rights, and so on), and urban issues (on which it is totally elitist), not to speak of the Hindutva-is-secularism judgement (1995).

The courts' failures to deliver a modicum of justice to the victims of the Gujarat carnage in four-and-a-half years (barring retrial in the Zaheera Sheikh case), and to intervene to stop one of the greatest corporate frauds in India's history (Enron), contrast sharply with their zealous micro-management of urban issues, including large-scale demolitions in Delhi, which have